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FAR EASTERN DEPARTMENT

JAPAN

1951

FJ 1022/162

FROM

Sir J.C. Sterndale Bennett (S'pore).
To
Mr. R.H. Scott.

No. 1262/86/51.

Dated 17th March 1951.

Received in Registry— 22nd March 1951.

Japanese Peace Treaty: information referring to a Treaty in which China (or Russia) did not participate, agreement with the so called U.N. Declaration of Jan 1st 1942.

REFERENCES

MINUTES

Draft answer to this letter and to Singapore Saving Tel. No. 51 para. 4.

C.H. Johnston
28.iii.

RHS
28/3

(Print)

(How disposed of)

Dft) Sir J.C. Sterndale Bennett (S'pore) from Mr. Scott. March 29

(Action completed)	**(Index)**
29/3	22/6/51

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(Mr Johnston – I would like to reply to this.)
RHS.

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Office of the Commissioner-General
for the United Kingdom in S.E. Asia,

CONFIDENTIAL

Singapore, 17th March, 1951.

Ref: 1282/86/51

FJ 1022/162

My dear Rob,

In reading through recent telegraphic correspondence about the Japanese peace treaty it occurred to me to wonder how the idea of a treaty in which China (and Russia) did not participate, squared with the so-called United Nations Declaration of January 1st 1942 by which the signatories undertook not to make a separate armistice or peace with the members of the Tripartite Pact. Since H.M.G. now favour a multilateral treaty without Russia or China, and have been prepared to consider even bilateral treaties with Japan, they must have satisfied themselves that the United Nations Declaration constitutes no bar. But I have seen no reference to the point in any correspondence, nor can I trace that either the Russians or the Chinese have ever brought the United Nations Declaration into the argument. Perhaps they on their side prefer not to do so whatever they may think of its relevance, since if it were used as the basis of their claim to participate, they would by inference be admitting the claim of all the twenty six signatories and any later adherents. This presumably would not suit their book.

Anyhow, in case the point is ever raised, it would be interesting to know the grounds on which H.M.G. have decided that the United Nations Declaration does not affect the issue.

Yours ever,

J.C. Sterndale Bennett

(J.C. Sterndale Bennett)

R.H. Scott Esq., C.M.G., C.B.E.,
Foreign Office,
LONDON, S.W. 1.

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Registry
No. FJ 1022/162

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Confidential
[redacted]

Draft. letter to

Sir John.Sterndale
Bennett, K.C.M.G.
M.C.,
SINGAPORE.

From Mr.R.H.Scott.

C.H. Johnston
28.iii

RECEIVED IN
DIVISION.
2 MAR 1951
SENT TO TYPE 28/3/51

NOTHING TO BE WRITTEN IN THIS MARGIN.

Thank you for your letter of the 17th March (1282/86/51) about the Japanese Peace Treaty.

2 The point to which you refer about the United Nations Declaration of the 1st January, 1942, had been very much in our minds. On the whole we are disposed not to worry about it too much, since we do not think it could be interpreted as entitling one or two of the signatories to hold up a peace settlement desired by all the other signatories so long after the actual hostilities have ended. As regards Russia, there is the further point, for propaganda purposes, that when she signed the Declaration she was not herself at war with Japan, and that, in view of her last-minute intervention in the war with Japan, it would be particularly inappropriate, and even rather absurd, for her solemnly to invoke this Declaration now.

3 We have also naturally been going very thoroughly into the question of Japan's renunciation of sovereignty over the Kuriles and South Sakhalin, to which reference is made in paragraph 4 of your telegram No. 51 Saving of the 1st March. The question of Port Arthur and Dairen, which is also referred to in paragraph 4 of your saving telegram under reference, is being covered in our draft Treaty, a copy of which we hope to be able to send you very soon, by a section providing for the renunciation by Japan of all her special rights and interests in China.

The main snags as regards the Treaty relate to procedure rather than substance, e.g. Chinese participation, the Formosan clause and so on. But with luck we hope to smooth them out & may be able to sign the Treaty this summer. Ratification of course will take time. RHS 28/3

(27274) Wt. 22831—216 325m 11/50 G.S. St

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FOREIGN OFFICE, S.W.1.

(FJ 1022/162)

29th March, 1951.

CONFIDENTIAL

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(R.H. Scott)

Sir John Sterndale Bennett. K.C.M.G., M.C.,
Singapore.